

M/S Subodh Gautam Arya Rice Mile v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 27 February 2025 · 2025:AHC:27117-DB · Writ-C No. 2942 of 2025 · **Writ disposed; relegated to clause 6.5; recovery stayed two months.**

HEADNOTE

A rice mill challenged a recovery citation of Rs. 13,75,425 and sought instalments after disputing a March 2024 bill. The Division Bench did not decide merits. If the petitioner objects under Clause 6.5 of the U.P. Electricity Supply Code, 2005 within ten days, the Department shall decide the objection within one month; recovery is stayed for two months.

FACTUAL SUMMARY

The petitioner rice mill sought certiorari to quash a recovery citation dated 16.07.2024 for Rs. 13,75,425 issued by the Executive Engineer, Dakshinanchal Vidyut Vitran Khand, Atarra, District Banda, and a mandamus to pay in easy instalments. The Electricity Department produced a bill dated 06.03.2024 and stated the connection had been temporarily disconnected. The petitioner disputed the bill and sought rectification; Department counsel said an objection could be raised under Clause 6.5 of the U.P. Electricity Supply Code, 2005.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing-objection

HOLDING

A consumer disputing a recovery citation and seeking bill rectification may be relegated to Clause 6.5 of the U.P. Electricity Supply Code, 2005: if an objection to the bill is filed within ten days, the Electricity Department shall decide it within one month, and no recovery shall be made for two months. ¶ 5-6

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 A rice mill challenged a recovery citation of Rs. 13,75,425 and sought instalments after disputing a March 2024 bill. The Division Bench did not decide merits. If the petitioner objects under Clause 6.5 of the U.P.. ¶ 5-6

installment-payment-clause-6.14 A rice mill challenged a recovery citation of Rs. 13,75,425 and sought instalments after disputing a March 2024 bill. The Division Bench did not decide merits. If the petitioner objects under Clause 6.5 of the U.P.. ¶ 5-6

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE DISPUTED BILL AND RECOVERY CITATION

Court expressly stated it had not decided the case on merits. ¶ 7